

Persons interested in a written instrument may seek a declaration of their rights or duties with respect to property where there is an actual controversy relating to the legal rights and duties of the parties. (Code Civ. Proc., § 1060.) To obtain declaratory relief, a party must show facts of an actual controversy. (*Wolas v. Crescent Commercial Corp.* (1948) 86 Cal.App.2d 740, 745.)

Plaintiff has met its burden. Defendants have not apposed this motion and therefore have not presented any evidence of any triable issues of fact. As such, the court grants the motion for summary judgment.

Tentative Ruling

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(35)

Tentative Ruling

Re: **Magallen v. Chandler**
Superior Court Case No. 21CECG03582

Hearing Date: July 28, 2026 (Dept. 502)

Motion: (1) Motion to Compel Discovery Responses
(2) Motion for Terminating Sanctions

Tentative Ruling:

To deny the motion to compel further discovery responses as moot.

To deny the motion for terminating sanctions as moot.

**If oral argument is timely requested, it will be entertained on
Thursday, July 30, 2026, at 3:30 p.m. in Department 502.**

Explanation:

Defendants Ron Chandler, Katie Gorman, Jim Sutton, Bonnie Rookus, Debbie Porter, John Douglas, David Byrd, Virginia Johnson and Regency Property Management (together "Defendants") seek further responses from defendant Wonder Valley Property Owners Association, and for terminating sanctions as to plaintiffs Sonya Pierce, Coco Magallen, and Otis Pierce (together "Plaintiffs"). However, on June 25, 2026, Defendants' motion for summary judgment of Plaintiffs' Complaint was granted. Accordingly, the present motions are denied as moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  on 7-27-26 .
(Judge's initials) (Date)